

5. S-CV-0049211 Ferriera, Danielle v. Anderson Merchandisers

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval of the Class Action and PAGA Settlement

Plaintiff seeks final approval of the parties' class action and PAGA action settlement. The court observes two procedural deficiencies with the motion. First, there is no evidence in the court's file that this motion was served on defendant. Second, the declaration of plaintiff Danielle Ferriera (attached as Exhibit 3 to the declaration of counsel Harp) is neither signed nor dated.

The court, on its own motion, continues the motion hearing to **September 8, 2026 at 8:30 a.m. in Department 32**. Plaintiff is directed to forthwith serve the moving and supporting papers on defendant and by August 25, 2026 file a proof of service. Plaintiff is further directed to forthwith file and serve (1) a notice of continued hearing and (2) a declaration of plaintiff that is signed and dated by plaintiff and shall file proofs of service of these documents by August 25, 2026.

6. S-CV-0049793 Ratzak, Jessica v. Thinkware Systems USA

Motion for Preliminary Approval

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.)

The court has carefully considered the class action settlement agreement (Friedman Decl., Exh. A), plaintiff's moving papers in connection with the motion filed February 20, 2026, the supplemental declarations of counsel Friedman filed June 16, 2026 and August 4, 2026, and the entire court file. The court determines a sufficient showing has been made that the class action settlement is fair, adequate, and reasonable. The court preliminarily approves the class action settlement agreement attached as Exhibit A to the February 20, 2026 declaration of counsel Friedman. The court also approves the proposed form of notice attached as Exhibit B to the February 20, 2026 declaration of counsel Friedman. As to the proposed form of notice attached as Exhibit C to the February 20, 2026 declaration of counsel Friedman, the court observes item 14 states the final approval hearing will be in Department 6 before the Honorable Garen Horst at 101 Maple Street, Auburn, CA 95603. Item 14 of Exhibit C should dictate Department 32, the Honorable Trisha J. Hirashima, and the address of 10820 Justice Center Drive, Roseville, California